

HOUSE No. 431

The Commonwealth of Massachusetts

PRESENTED BY:

Adrian C. Madaro and Carlos González

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to end housing discrimination in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>1/15/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/5/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>8/13/2025</i>

HOUSE No. 431

By Representatives Madaro of Boston and González of Springfield, a petition (accompanied by bill, House, No. 431) of Adrian C. Madaro and Christopher J. Worrell for legislation to further regulate real estate brokers and salespersons. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end housing discrimination in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 13 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out section 54 and inserting in place thereof the following
3 section:-

4 Section 54. There shall be a board of registration of real estate brokers and salesmen, in
5 this section and in sections fifty-five to fifty-seven, inclusive, called the board, to be appointed
6 by the governor with the advice and consent of the council, consisting of seven members,
7 residents of the commonwealth, four of whom shall have been actively engaged in the real estate
8 business as a full-time occupation for at least seven years prior to their appointment and who
9 shall be licensed real estate brokers, one of whom shall either be an expert in fair housing and
10 civil rights or a tenant from a duly recognized tenants' organization in the commonwealth
11 receiving public assistance from a local, state or federal rental voucher program, and two of
12 whom shall be representatives of the public. The governor shall designate the chairman. As the

term of office of a member of the board expires, his successor shall be appointed by the governor, with like advice and consent, to serve for five years. Each member shall be eligible for reappointment and shall serve until the qualification of his successor. The governor may also, with like advice and consent, fill any vacancy in the board for the unexpired portion of the term.

SECTION 2. Section 55 of said chapter 13, as so appearing, is hereby amended by inserting, at the end of the section, the following words:-

The board shall publish, not less than quarterly, an account of newly licensed members. The board shall also publish, not less than quarterly, a summary of complaints filed against licensed members, the actions taken by the board to investigate such complaints, disciplinary hearings, disciplinary actions or revocations of licenses, the reason for such actions by the board, including any findings, in which finding has become final, of discrimination against any classes protected by Chapter 151B or otherwise protected by any other general or special law or federal statute, and the name of the affected license holder.

SECTION 3. The third sentence of section 87AAA of chapter 112 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by adding, after the words “the Massachusetts commission against discrimination” the following words:- , or any other agency that administers fair housing laws and is certified by the federal Assistant Secretary for Fair Housing and Equal Opportunity pursuant to the federal Fair Housing Act, 42 U.S.C. 3601 through 42 U.S.C. 3619, inclusive.

SECTION 4. Said third sentence of said section 87AAA of said chapter 112 of the General Laws is hereby further amended by adding, after the words “that said commission” the following words:- or agency.

SECTION 5. Said third sentence of said section 87AAA of said chapter 112 of the General Laws is hereby further amended by adding, after the words “the said commission” the following words:- or agency.

SECTION 6. Said third sentence of said section 87AAA of said chapter 112 of the General Laws is hereby further amended by striking the word “ninety” and inserting in place thereof the following words:- one hundred and eighty.

SECTION 7. Said section 87AAA of said chapter 112 of the General Laws is hereby further amended by adding, after the third sentence, the following words:- The board, after notice by the Office of the Attorney General that a court in a matter brought by the Office of the Attorney General has made a finding, which finding has become final, that a licensed broker or salesman committed an unlawful practice in violation of chapter 151B arising out of or in the course of his occupation as a licensed broker or salesman, shall suspend forthwith the license of said broker or salesman for a period of sixty days, provided, however that if the board determines that the violation by such licensed broker or salesman occurred within two years of the date of a prior finding by a court or agency of a violation of chapter 151B, which prior finding has become final, it shall forthwith suspend the license of such broker or salesman for a period of one hundred and eighty days. The Board shall suspend the license of a broker or salesman for any violation of chapter 151B referred to it under this section. Agencies empowered to make referrals to the Board under this section shall make all referrals that qualify under this section and do not have discretion as to whether to make the referral.

SECTION 8. Section 87SS of chapter 112 of the General Laws, as so appearing, is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:-

Every individual applicant for a license as a salesman who is required to take an examination therefore shall, as a prerequisite to taking such examination, submit proof satisfactory to the board that he has completed courses in real estate subjects approved by the board, such courses to total 40 classroom hours of instruction and must include at least four hours on fair housing law or diversity and inclusion in real estate; provided, however, that applicants having successfully completed a course in real property while enrolled in an accredited law school in the commonwealth may also take such examination.

SECTION 9. Said chapter 112 of the General Laws is hereby further amended by striking out the first paragraph of section 87XX1/2 and inserting in place thereof the following paragraph:-

Section 87XX1/2. Any person holding a license as a real estate broker or salesman shall, within their renewal period, satisfactorily complete courses or programs of instruction approved by the board; provided that attendance at such courses or programs of instruction shall be no less than ten hours but no more than sixteen hours as determined by the board. The curriculum contained in such courses or programs shall contain at least six hours of instruction concerning or related to compliance with laws and regulations selected from any of the following subjects: equal employment opportunity; accessibility for the disabled; agency law; environmental issues in real estate; zoning and building codes; real estate appraisal and financing; property tax assessments and valuation; and real estate board regulations. In addition, the curriculum shall

77 contain at least three hours on alternative dispute resolution methods and at least four hours on
78 fair housing law or diversity and inclusion in real estate. The board shall certify in advance the
79 curriculum forming the basis of such courses or programs which satisfy the provisions of this
80 section.